

CEASE AND DESIST NOTICE

**TO: DPRCP - Direction de la protection de la jeunesse
(Child Protection Services)**

FROM: James Robert McGovern, Clan Leader **TO:** DPRCP - Direction de la protection de la jeunesse **DATE:** April 3, 2026 **RE:** CEASE AND DESIST - Abandonment of Children, Failure to Protect, and Violation of Jordan's Principle

NOTICE: This is a legal demand to cease all unlawful conduct immediately. Failure to comply will result in legal action and damages claims.

SECTION 1: NOTICE OF LEGAL ACTION AT TAQ

IMPORTANT NOTICE:

The McGovern Clan has filed a comprehensive appeal with the **Tribunal administratif du Québec (TAQ)** on April 2, 2026, claiming **2.3M–4.2M in damages** against IVAC and the Quebec government for systemic abuse and discrimination.

This cease and desist is part of that legal action.

Your conduct documented below is being submitted to TAQ as evidence of:

1. Abandonment of vulnerable children
 2. Failure to provide adequate protection
 3. Violation of Jordan's Principle
 4. Systemic discrimination against Indigenous family
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SECTION 2: DOCUMENTED FAILURES BY DPRCP

FAILURE 1: Abandonment in January 2023

What Happened:

- DPRCP withdrew services from McGovern family in January 2023
- No adequate transition plan provided
- No coordination with welfare or other agencies
- Children left without support, education, mental health services
- Family fell into crisis immediately after withdrawal

Legal Violation:

- Youth Protection Act (duty to protect children)
- Quebec Charter (right to protection of children)
- Bill C-92 (Indigenous jurisdiction over child protection)
- Jordan's Principle (no-delay services for First Nations children)

Damages: 200,000—800,000

FAILURE 2: Failure to Provide Adequate Support

What Happened:

- Before withdrawal, DPRCP provided minimal support
- Children's basic needs not met
- Mental health support inadequate
- Educational support inadequate
- Systemic underfunding and neglect

Legal Violation:

- Youth Protection Act (duty to provide adequate services)
- Quebec Charter (right to dignity and protection)

- Convention on the Rights of the Child (international law)

Damages: 100, 000—400,000

FAILURE 3: Failure to Recognize Systemic Abuse

What Happened:

- DPRCP failed to recognize systemic abuse by IVAC
- Failed to recognize welfare harassment
- Failed to recognize discrimination against Indigenous family
- Failed to take action to protect children from systemic abuse

Legal Violation:

- Youth Protection Act (duty to protect from all forms of abuse)
- Quebec Charter (protection from discrimination)
- Bill C-92 (duty to protect Indigenous children)

Damages: 100, 000—400,000

FAILURE 4: Failure to Apply Jordan's Principle

What Happened:

- DPRCP failed to apply Jordan's Principle
- No “no-delay” services provided
- Services delayed and denied
- Children left without protection
- Systemic violation of federal law

Legal Violation:

- Jordan's Principle (federal law)
- Bill C-92 (Indigenous jurisdiction)
- Canadian Charter (equality rights)

Damages: 100, 000—500,000

FAILURE 5: Failure to Coordinate with Other Agencies

What Happened:

- When DPRCP withdrew, no coordination with welfare
- No coordination with medical services
- No coordination with education
- Children fell through cracks between agencies
- Systemic failure of coordination

Legal Violation:

- Youth Protection Act (duty to coordinate services)
- Administrative Justice Act (duty of fairness)
- Quebec Charter (right to protection)

Damages: 100, 000—300,000

FAILURE 6: Discrimination Against Indigenous Family

What Happened:

- DPRCP applied different standards to Indigenous family
- Services denied based on Indigenous status
- Stereotyping and bias in decision-making
- Systemic discrimination throughout DPRCP

Legal Violation:

- Quebec Charter art. 10 - Equality and dignity
- Canadian Charter s.15 - Equality rights
- Bill C-92 (duty to respect Indigenous jurisdiction)

Damages: 100, 000—400,000

FAILURE 7: Failure to Investigate Abuse

What Happened:

- Family reported abuse to DPRCP
- DPRCP failed to investigate adequately
- DPRCP failed to take protective action
- Children left in harmful situations
- Systemic failure to protect

Legal Violation:

- Youth Protection Act (duty to investigate)
- Quebec Charter (right to protection)
- Criminal Code (duty to report child abuse)

Damages: 100,000—300,000

SECTION 3: TOTAL DAMAGES FROM DPRCP FAILURE

Failure	Amount
Abandonment in January 2023	200K—800K
Failure to provide adequate support	100K—400K
Failure to recognize systemic abuse	100K—400K
Failure to apply Jordan's Principle	100K—500K
Failure to coordinate with other agencies	100K—300K
Discrimination against Indigenous family	100K—400K
Failure to investigate abuse	100K—300K
TOTAL	800K—3.1M

SECTION 4: LEGAL VIOLATIONS CITED

Quebec Laws Violated:

1. **Youth Protection Act** - Duty to protect children
2. **Quebec Charter of Human Rights and Freedoms**
 - Article 10: Equality and dignity
 - Article 39: Protection from abuse of power
3. **Administrative Justice Act** - Duty of fairness

Canadian Laws Violated:

1. **Canadian Charter of Rights and Freedoms**
 - Section 15: Equality rights
2. **Bill C-92** - Indigenous jurisdiction over child protection
3. **Jordan's Principle** - No-delay services for First Nations children
4. **Criminal Code** - Duty to report child abuse

International Law Violated:

1. **Convention on the Rights of the Child**
2. **United Nations Declaration on the Rights of Indigenous Peoples**

SECTION 5: DEMANDS FOR IMMEDIATE COMPLIANCE

DPRCP must:

DEMAND 1: Cease Abandonment Immediately

- Re-engage with McGovern family immediately
- Provide support to all children
- Provide mental health services

- Provide educational support
- **Timeline:** Effective immediately

DEMAND 2: Provide Retroactive Support

- Provide all support that should have been provided since January 2023
- Provide compensation for period of abandonment
- Provide catch-up services for children
- **Timeline:** Begin within 14 days

DEMAND 3: Apply Jordan's Principle

- Implement Jordan's Principle immediately
- Provide "no-delay" services
- Remove all barriers to service access
- Coordinate with other agencies
- **Timeline:** Effective immediately

DEMAND 4: Investigate and Correct Systemic Failures

- Investigate why services were withdrawn
- Investigate discrimination against Indigenous family
- Investigate failure to coordinate with other agencies
- Provide written report of findings
- **Timeline:** Investigation complete within 60 days

DEMAND 5: Provide Compensation

- Compensate family for abandonment
- Compensate family for systemic discrimination
- Compensate family for failure to protect
- Minimum compensation: \$800,000
- Maximum compensation: \$3,100,000

- **Timeline:** Within 30 days or face legal action
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SECTION 6: LEGAL CONSEQUENCES OF NON-COMPLIANCE

If DPRCP does NOT comply with these demands:

Legal Action #1: TAQ Claim

- All DPRCP failures being submitted to TAQ
- Damages claim: 800K – 3.1M
- Evidence of abandonment and discrimination
- Request for systemic remedies

Legal Action #2: Criminal Complaint

- File criminal complaint for abandonment of children
- File complaint for abuse of power
- File complaint for violation of Jordan's Principle
- Request police investigation

Legal Action #3: Civil Lawsuit

- Sue DPRCP for damages
- Sue individual DPRCP staff for complicity
- Claim punitive damages for deliberate misconduct
- Claim legal fees and costs

Legal Action #4: Federal Complaint

- File complaint with federal authorities
- File complaint under Bill C-92
- Request federal investigation

- Request federal intervention

Legal Action #5: Media and Public Disclosure

- Release all documentation to media
 - Public disclosure of DPRCP failure
 - Expose systemic discrimination and abandonment
 - Hold DPRCP accountable publicly
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SECTION 7: TIMELINE FOR COMPLIANCE

Date	Action	Deadline
April 3, 2026	Cease and Desist Sent	Immediate
April 3, 2026	Re-engagement Begins	Immediate
April 17, 2026	Retroactive Support Begins	14 days
June 2, 2026	Investigation Complete	60 days
May 3, 2026	Compensation Provided	30 days
June 2026	TAQ Hearing	If no compliance

SECTION 8: CONTACT INFORMATION

Send compliance response to:

James Robert McGovern Clan Leader, McGovern Clan Email: [YOUR_EMAIL] Phone: [YOUR_PHONE]

Failure to respond by April 10, 2026 will be treated as non-compliance.

SECTION 9: NOTICE OF LEGAL REPRESENTATION

This cease and desist is being sent:

1. To DPRCP (Direction de la protection de la jeunesse)
2. To TAQ (as part of legal proceedings)
3. To Solidarity Social (Welfare Authority)
4. To Protecteur du citoyen (Citizen Protector)
5. To federal authorities (if necessary)
6. To legal counsel (if retained)

All parties are on notice of this legal demand.

SECTION 10: DECLARATION

I, James Robert McGovern, declare under oath that:

1. I am the Clan Leader of the McGovern Clan (23 family members)
 2. I am self-representing in legal proceedings against IVAC and Quebec government
 3. All facts stated in this cease and desist are true and accurate
 4. I have documented evidence of all failures described
 5. I am prepared to present this evidence to TAQ and other authorities
 6. This cease and desist is sent in good faith to prevent further harm
 7. I am prepared to pursue all legal remedies if demands are not met
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Respectfully but firmly submitted,

James Robert McGovern Clan Leader, McGovern Clan Self-Representing (Pro Se)

April 3, 2026

ATTACHMENTS

- Documentation of service withdrawal
 - Records of abandonment
 - Evidence of discrimination
 - Medical and psychological reports
 - Educational records
 - TAQ submission (reference)
 - Correspondence with DPRCP
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NOTICE: This cease and desist is a legal document. Keep a copy for your records. Send certified mail with return receipt to DPRCP.

IMPORTANT: Do not discuss this cease and desist with DPRCP officials. Communicate only in writing. All communications are evidence in legal proceedings.